Unofficial
20 Document

WHEN RECORDED MAIL TO:

17
mo

TIFFANY & BOSCO, P.A.
Central Arts Plaza
Twenty Fourth Floor
1850 North Central Avenue
Phoenix, Arizona 85004

Title No: 4269367

NOTICE OF TRUSTEE'S SALE
File ID. #26-16871-NS-AZ Cruz Napoles

The following legally described trust property will be sold, pursuant to the power of sale under that certain trust deed recorded on 04/18/2025 as Document No. 20250219408 of the Official Records of Maricopa County, AZ. **NOTICE! IF YOU BELIEVE THERE IS A DEFENSE TO THE TRUSTEE SALE OR IF YOU HAVE AN OBJECTION TO THE TRUSTEE SALE, YOU MUST FILE AN ACTION AND OBTAIN A COURT ORDER PURSUANT TO RULE 65, ARIZONA RULES OF CIVIL PROCEDURE, STOPPING THE SALE NO LATER THAN 5:00P.M. MOUNTAIN STANDARD TIME OF THE LAST BUSINESS DAY BEFORE THE SCHEDULED DATE OF THE SALE, OR YOU MAY HAVE WAIVED ANY DEFENSES OR OBJECTIONS TO THE SALE. UNLESS YOU OBTAIN AN ORDER, THE SALE WILL BE FINAL AND WILL OCCUR** at public auction on **February 4, 2027 at 10:00 AM at the Main Entrance to the Superior Court Building of the Maricopa County Courthouse, 201 W. Jefferson Street, Phoenix, AZ 85003** and the property will be sold by the Trustee to the highest bidder for cash (in the forms which are lawful tender in the United States and acceptable to the Trustee, payable in accordance with ARS 33-811). The sale shall convey all right, title, and interest conveyed to and now held by it under said Deed of Trust, in the property situated in said County and State and more fully described as:

Lot 5, of ENCANTO VILLAGE, according to the Plat of record in the Office of the County Recorder of Maricopa County, Arizona, recorded in Book 78 of Maps, Page 1.

The street address/location of the real property described above is purported to be:

2533 N 41St Ave
Phoenix, AZ 85009
Tax Parcel No.: 108-29-005 8

The undersigned Trustee, **Leonard J. McDonald, Attorney at Law,** disclaims any liability for any incorrectness of the street address and other common designation, if any, shown herein.

Said sale will be made in an "as is" condition, but without covenant or warranty, expressed or implied, regarding title, possession or encumbrances, to satisfy the indebtedness secured by said Deed of Trust, advances thereunder, with interest as provided therein, and the unpaid principal balance of the Note secured by said Deed of Trust with interest thereon as proved in said Note, plus fees, charges and expenses of the Trustee and of the trusts created by said Deed of Trust.

(Notice of Sale continued following page .....)

Page 2 of Notice of Trustee's Sale
File ID: 26-16871-NS-AZ Cruz Napoles

Original Principal Balance: $305,550.00

Original Trustor: Kendry Cruz Napoles, a single man, and Kerlys Cruz Napoles, a single man
2540 n 51st ave Apartment 324, Phoenix, AZ 85035

Current Beneficiary:
CrossCountry Mortgage, LLC
Care of/Servicer
Nationstar Mortgage LLC
8950 Cypress Waters Blvd.
Coppell, TX 75019

Current Trustee:
Leonard J. McDonald
Twenty Fourth Floor
1850 North Central Avenue
Phoenix, Arizona 85004
(602) 255-6035

Dated this 3 day of November, 2026

Leonard J. McDonald, Attorney at Law
Trustee/Successor Trustee, is regulated by and qualified per ARS Section 33-803 (A)2 as a member of The Arizona State Bar

STATE OF ARIZONA
COUNTY OF MARICOPA

Unofficial Document

On this 3 day of November, 2026 before me, Stephen Daniel Clem, a Notary Public for said State, personally appeared Leonard J. McDonald personally known to me (or proved to me on the basis of satisfactory evidence) to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

WITNESS my hand and official seal.

Notary Public State of Arizona
Maricopa County
Stephen Daniel Clem
My Commission Expires 11/3/2026
Commission Number 635773

Stephen Daniel Clem, Notary Public

If a determination is made that this firm is a debt collector as that term is defined within the Fair Debt Collection Practices Act, then you are notified that this communication is from a debt collector, that this firm is attempting to collect a debt, and that any information obtained will be used for that purpose. Please be advised that if your personal liability for this debt has been modified or extinguished by a discharge in bankruptcy, this communication is provided solely in reference to the enforcement of the security instrument remaining on the property and is not an attempt to collect the discharged personal obligation. The notifications provided herein do not limit or detract from the rights provided for in the security instrument.

NOTICE: If the sale is set aside for any reason, the Purchaser at the sale shall be entitled only to a return of the deposit paid. The Purchaser shall have no further recourse against the Mortgagor, the Mortgagee or the Mortgagee's attorney.

NOTICE: To the extent that the sale is subject to Financial Crimes Enforcement Network's Residential Real Estate Reporting Rule (31 C.F.R. Part 1031), purchaser agrees to provide all required information and further agrees to reimburse trustee for any costs, expenses or fees incurred as a result of the collection of such information